

THE UNIVERSAL HOUSE OF JUSTICE

1995-05-05

To all National Spiritual Assemblies

dear bahá'í friends,

of a judgment by the Supreme court of india on a religious dispute between the hindus and muslims in which the official decision of this highest judicial authority in india cited the bahá'í faith as an example and the Teachings of the faith as guidelines for solving such disputes. As you may recall, the babri mosque in the northern town of Ayodhya was razed by a group of hindus because the mosque, built in 1528, had been erected on the spot where the hindu god rama is said to have been born thousands of years earlier. The destruction enraged muslims and ignited a grave crisis in india. muslim and hindu mobs attacked each other's houses of worship, homes and people in a number of cities, resulting in the death of hundreds and the destruction of property not only in india but in pakistan, bangladesh, and even in britain.

The relevant excerpt from the judgment of the Supreme court of india dated 24 october 1994 is enclosed for your information.

The faith has emerged from obscurity, thanks to the sacrifices of the bahá'ís in iran and the solidarity of the bahá'í world in rallying around its institutions to support and protect the community of the greatest Name in the cradle of the faith. many doors have been opened as a result of campaigns waged to reach government officials to familiarize them with the faith and the deplorable situation of the bahá'ís in iran, as well as through the interaction of the friends in worthy causes for the benefit of their countrymen. reports have been received that receptive members of governments are now using the life-giving Teachings and principles of the faith in directing the affairs of their countries. The enclosed excerpt from the judgment is one such indication. The house of justice is gratified by these accomplishments, and is confident that such

efforts will be magnified in the future.

with loving b ahá'í greetings,

Department of tHe secretariat202.1

202.2

202.3

1993–1996 • T h e T h r e e Y e a r P l a n

1The Supreme Court of India

Civil Original Jurisdiction

Transferred Case (C) Numbers 41, 43 And 45 Of 1993

Writ Petition (Civil) Number 20b Of 1993

Transferred Case (C) Number 42 Of 1993

Writ Petition (C) Number 186 Of 1994

Excerpt from pp. 91–93 of the Judgment of the

Supreme Court of India

“As 1993 began, communal violence returned to india, sparked by the controversy over a 16th century mosque said to stand on the ruins of an ancient hindu temple honoring lord rama.” it may be said that ‘fundamentalism and pluralism pose the two challenges that people of all religious traditions face’; and “to the fundamentalists, the borders of religious certainty are tightly guarded; to the pluralist, the borders are good fences where one meets the neighbor. To many fundamentalists, secularism, seen as the denial of religious claims, is the enemy; to pluralists, secularism, seen as the separation of government from the domination of a single religion, is the essential concomitant of religious diversity and the protection of religious freedom.” The present state may be summarized thus: “At present, the greatest religious tensions are not those between any one religion and another; they are the tensions between the fundamentalist and the pluralist in each and every religious tradition.”

The spirit of universalism popular in the late 19th century was depicted

by max muller who said, “The living kernel of religion can be found,

i believe, in almost every creed, however much the husk may vary. And think what that means: it means that above and beneath and behind

religions there is one eternal, one universal religion.”

The year 1993 has been described as the “ year of interreligious un-

derstanding and cooperation.” is that century old spirit of conciliation

and cooperation reflected in reactions of the protagonists of different religious faiths to justify 1993 being called the “ year of interreligious understanding and cooperation?” (“r eflections on religious diversity” by diana l. [illegible] September 1994). it is this hope which has to be realized in the future.

A neutral perception of the requirement for communal harmony is to be found in the bahá’í faith. in a booklet, Communal Harmony: India’s Greatest Challenge, forming part of the b ahá’í literature, it is stated thus:202.4

202.5

202.6

m eS Sa g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

2“... The spirit of tolerance and assimilation are the hall marks of this civilization. Never has the question of communal harmony and social integration raised such a wide range of emotions as today. . . .”

“fear, suspicion and hatred are the fuel which feed the flame of communal disharmony and conflict. Though the indian masses would prefer harmony between various communities, it cannot be established through the accommodation ‘separate but equal,’ nor through the submergence of minority culture into majority culture—whatever that may be. . . .”

“lasting harmony between heterogeneous communities can only come through a recognition of the oneness of mankind, a realization that differences that divide us along ethnic and religious lines have no foundation. just as there are no boundaries drawn on the earth of separate nations, distinctions of social, economic, ethnic and religious identity imposed by peoples are artificial; they have only benefited

those with vested interests. on the other hand, naturally occurring diverse regions of the planet, or the country, such as mountain and plains, each have unique benefits. The diversity created by god has infinite value, while distinctions imposed by man have no substance.”

we conclude with the fervent hope that communal harmony, peace and tranquility would soon descend in the land of mahatma gandhi, father of the Nation, whose favorite bhajan (hymn) was

[two lines written in h indi]

“ishwar and Allah are both your names,

oh god! g rant this wisdom to all.”

we do hope that the people of india would remember the gospel he
preached and practiced, and live up to his ideals. “ better late than never.” . . .

[justice] j.S. v erma

[justice] g.N. ray

New d elhi

october 24, 1994202.6a

202.6b

202.6c

202.7

202.7a

202.8

1993–1996 • T h e T h r e e Y e a r P l a n

203

The Character of Internet Postings

[signed: The Universal House of Justice]